

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Team # 1	CCRB Case #: 201404293	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 05/02/2014 10:45 PM	Location of Incident: In front of § 87(2)(b) and the 73rd Precinct stationhouse		18 Mo. SOL 11/2/2015		Precinct: 73
Date/Time CV Reported Mon, 05/05/2014 9:13 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 05/05/2014 9:13 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Henry Rivera	03959	940639	073 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rafael Figueroa	25243	948336	073 PCT
2. SGT Matthew Cahill	01163	932397	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, officers stopped § 87(2)(b)	A . Officer(s) Unidentified
B . Officers	Force: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, officers pointed their guns at § 87(2)(b)	B . Officer(s) Unidentified
C . Officers	Discourtesy: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, officers spoke discourteously to § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Force: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . Officers	Abuse: On May 2, 2014, at § 87(2)(b) in Brooklyn, officers searched § 87(2)(b)	E . Officer(s) Unidentified
F . POM Henry Rivera	Abuse: On May 3, 2014, at the 73rd Precinct stationhouse, PO Henry Rivera did not process § 87(2)(b)'s complaint regarding officers.	F . Unsubstantiated

Case Summary

On May 2, 2014, § 87(2)(b) learned about an incident involving a gun and shots fired that involved his younger brother at the PS12 school park which is located on the corner of Prospect Place and Howard Avenue in Brooklyn. § 87(2)(b) § 87(2)(b) to his car. When he reached his car, before he was able to unlock the door, § 87(2)(b) alleged that an ESU truck, and two unmarked cars, pulled up to him and exited their vehicles with their guns pointed at § 87(2)(b) allegedly saying “Get your fucking hands in the air” and “Get the fuck on the floor.” (**Allegations A, B and C**). He then stated that he laid on the floor and that four of the plainclothes officers got on top of him and began to handcuff him. § 87(2)(b) alleged that an officer also said “Shut your fucking mouth” (**Allegation C continued**). Then an officer allegedly kicked § 87(2)(b) in the face while he was lying on the ground (**Allegation D**). § 87(2)(b) received a laceration on his left brow bone as a result of this. Then another one or two officers allegedly entered § 87(2)(b) § 87(2)(b)s pants pockets and removed his wallets from his pockets (**Allegation E**). § 87(2)(b) was eventually picked up from the ground and told by the officers that they stopped him because they had thought he had a gun when he was running to his car. § 87(2)(b) was not arrested and was not issued a summons. On May 3, 2014, at 8:00 a.m., § 87(2)(b) spoke to PO Henry Rivera at the 73rd Precinct stationhouse and wanted to file a complaint. PO Rivera allegedly refused to take his complaint but told him he could call the CCRB (**Allegation F**).

§ 87(2)(g)

Mediation, Notice of Claim, and Criminal Histories

This case was not eligible for mediation. § 87(2)(b) filed a Notice of Claim on § 87(2)(b), claiming false arrest and imprisonment, negligent performance of police duties, negligent training, supervision, discipline and retention of New York City Police Officers, violation of rights under the New York State Constitution, abuse of process, excessive force and assault, and seeking an undetermined amount of money in damages (encl. 16a-b). A 50H hearing was held on § 87(2)(b) (encl. 4a-qq). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 1b).
- PO Henry Rivera has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 1a).

NYPD Documents

- Event #§ 87(2)(b) and Event #§ 87(2)(b) for the 911 calls related to this incident state that there were shots fired and a person with a gun in the PS12 school yard. The 73rd Precinct sector J, 73rd Precinct patrol sergeant and 73rd precinct anti-crime go over the radio but none of the units are noted as arriving on the scene. Unit 73 J closed the event as unfounded (encl. 10a-l).
- There are no Command Log entries pertaining to the shots fired/gun calls related to this incident (encl. 13a-h).
- The handwritten Stop, Question and Frisk Report Index for May 2, 2014 does not note any Stop, Question and Frisk Reports prepared for this incident (encl. 11a-b).

- No record was found for warrant checks conducted for § 87(2)(b) on May 2, 2014 (encl. 18e).
- The request for ESU documents stated that ESU did not respond to § 87(2)(b) on May 2, 2014 at 10:45 p.m. (encl.18f).

Findings and Recommendations

Explanation of Subject Officer Identification

The Events for the 911 calls pertaining to shots fired and a gun at the PS12 school yard do not show any units as arriving on the scene, even though multiple civilians confirm that numerous officers were at the scene. The Events only mention sector J and the patrol sergeant, who would have been in uniform, and anti-crime officers, who would have been in plainclothes, as going over the radio for the shots fired/gun calls. However, the Events never mark those units as arriving on the scene (encl. 9a, 10a-l). The anti-crime officers on duty, Sgt. Cahill and PO Figueroa, were interviewed at the CCRB and had no recollection of the incident or interacting with § 87(2)(b) § 87(2)(g)

Additionally, by all accounts, there were far more officer at the scene than went over the radio. § 87(2)(g)

§ 87(2)(g) and § 87(2)(b) only provided general descriptions of some of the officers on the scene that could potentially match dozens of officers. § 87(2)(g)

§ 87(2)(b). Because there is no warrant check, Stop, Question and Frisk report, radio communications or any other police documentation for the stop of § 87(2)(b) because ESU was not noted as responding to the scene, because the incident location is on the border of two precincts, and because § 87(2)(b) and § 87(2)(b) could not describe all of the subjects of the allegations alleged, and because § 87(2)(b) stated that officers left the scene immediately after releasing him § 87(2)(g)

PO Rivera provided his name and badge number to § 87(2)(b) upon request. § 87(2)(g)

Investigation Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, officers stopped § 87(2)(b)

Allegation B – Abuse of Authority: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, officers pointed their guns at § 87(2)(b)

Allegation C – Abuse of Authority: On May 2, 2014, in front of § 87(2)(b) in Brooklyn, officers spoke discourteously to § 87(2)(b)

Allegation D – On May 2, 2014, in front of § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)

Allegation E – On May 2, 2014, at § 87(2)(b) in Brooklyn, officers searched

§ 87(2)(b)

§ 87(2)(b) stated that an ESU truck, containing officers wearing vests, and two unmarked cars, containing officers in plainclothes, drove next to him, and blocked him in. Five to seven officers allegedly exited these vehicles with their guns pointed at § 87(2)(b) saying “Get your fucking hands in the air.” The officers also allegedly said “Get the fuck on the floor.” § 87(2)(b) attributed these discourtesies to all of the officers that approached him; however, he could only describe two of them and provided general descriptions. He then stated that he lay on the floor and that four of the plainclothes officers got on top of him and began to handcuff him. Then an officer, who § 87(2)(b) could only describe as wearing black boots and jeans because that is all he could see, allegedly kicked § 87(2)(b) in the face. Then another one or two officers, who § 87(2)(b) could not see, allegedly entered § 87(2)(b) s pants pockets and removed both of his wallets from his pockets (encl. 3a-j).

§ 87(2)(b) stated that she saw two officers allegedly exit the truck with their guns pointed and tell § 87(2)(b) to put his hands up and get on the floor. § 87(2)(b) stated that an officer, who she was only able to hear the voice of and did not see, allegedly said, “Shut your fucking mouth” to § 87(2)(b). She also heard § 87(2)(b) asking the officers who kicked his eye, although she did not see the kick. When § 87(2)(b) was lifted up from the ground, officers allegedly removed § 87(2)(b) s wallet from his back pocket (encl. 5a-f). § 87(2)(b) s view of the officers’ interactions with § 87(2)(b) was blocked by a police truck, but she did hear her husband ask which officer kicked him (encl. 6b).

§ 87(2)(g)

Allegation F – On May 3, 2014, at the 73rd Precinct stationhouse, PO Henry Rivera did not process § 87(2)(b) s complaint regarding officers.

§ 87(2)(b) alleged that when he went to the 73rd Precinct stationhouse on May 3, 2014 around 8:00 a.m., he spoke to PO Rivera who asked him to explain the incident. PO Rivera then told § 87(2)(b) that he was going to be honest with him and that he was not going to file a report because he was not at the scene and he did not know what happened. PO Rivera told him that he

could call the CCRB if he wanted to and pointed to a sign that was hanging in the stationhouse (encl. 3a-j).

PO Rivera did not remember interacting with § 87(2)(b) at the stationhouse on May 3, 2014 (encl. 8a-e). He stated that his desk sergeant processes serious complaints such as this one, and PO Rivera will provide contact information for the CCRB as another option.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date